TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MARCH 25, 2019
MINUTES

Green arrows ▶ in Minutes are hyperlinks to the recording.

Attachment 1--**Staff Report**

Present: Joseph Belton, Chair, David Rubin, Barry Wolff, Meghan Finch-Stevens, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff: Michael Robertson, Julia Copeland, Andrew Tackett, Austin Rutherford, Lynnette Lynes

Mr. Belton called to order at 6:00 pm and introduced Ms. Stevens, newest Board member.

A. Approval of Agenda
B. Approval of Minutes

▶ *Mr. Wolff moved for approval of the agenda and minutes. Mr. Rubin seconded the motion. All in favor.*

C. Public Comment

There being no comments, Mr. Belton continued with the agenda.

D. General Correspondence

No correspondence.

E. Administration of Oath

▶ Mr. Belton reviewed the procedures with the public. He administered the oath to those speaking.

F. Business

1. **Case V-8-19, 812 Bowman Road, TMS # 559-05-00-115, Appeal from the strict application of §156.225 to allow removal of historic Live Oak tree.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

▶ Mr. Wood asked if there is an error in Law 1. Mr. Robertson answered in the affirmative and stated this was a typographical error. He clarified that the code section stipulates that properties platted prior to April 11, 2000 would require a variance.

Mr. Arthur Lacour, applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wood asked if the panels were professionally installed. Mr. Lacour answered in the affirmative. Mr. Wood asked if a calculation was performed to ensure the panels would receive sufficient sunlight. Mr. Lacour answered that there was a calculation completed, but there was a miscalculation on the number of trees.

▶ *Mr. Wolff moved for denial of the request based on the findings that this is a self-inflicted hardship and the staff report. Mr. Cowden seconded the motion. All in favor.*

2. Case V-9-19, 1232 Melvin Bennett Road, TMS # 560-02-00-060, Appeal from the strict application of §156.111 Location of Accessory Uses to allow after-the-fact encroachment of accessory structure into required setback.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Mamie Rudy, applicant, reviewed the request with the Board. She distributed copies of pictures showing the adjacent properties and garage (attachment 2).

Ms. Denise May, 1324 Bluebird Dr, stated that the developer has removed the majority of the trees on the commercial property and expressed concern that there would be a danger to child safety. She stated that she supports the variance request.

There being no further comments, Mr. Belton closed public comment.

Mr. Wolff asked what the property is zoned at the end of Melvin Bennett. Mr. Sean Rudy answered that the property is zoned commercial.

Mr. Belton asked if there was a pre-existing slab on the property that the garage was constructed. Mr. Robertson answered in the affirmative. Mr. Belton asked

if there were any changes to the foundation. Ms. Rudy answered in the negative and stated that the slab was tested prior to construction to ensure it met building requirements.

Mr. Wood asked how the violation was discovered. Mr. Rudy answered that it was discovered that a permit was needed after construction begun. Mr. Wood asked why a fence was not considered. Ms. Rudy answered that because the slab already existed, it would have needed to remove it to install the fence. She stated that another consideration is that the property next to their property is commercially zoned as well. She stated that the garage was thought to be better screening than a fence. Mr. Wood suggested that the garage could be moved forward within the setbacks. Ms. Rudy answered in the affirmative, but stated that there are protected trees that would be impacted that would require approval and possibly a variance.

Mr. Cowden asked how long the foundation has existed. Mr. Rudy answered that it was there when purchased in 2013.

Mr. Belton asked about a previous case where an existing foundation allowed a garage to be built. Mr. Robertson answered that he is not aware of an instance, but the other consideration is that if more than 50% replacement cost, then it would have to be built to building code. Mr. Belton asked if the percentage is based on the replacement cost. Mr. Robertson answered in the affirmative. Mr. Belton asked if the commercial property is on the right and back of the property. Mr. Rudy answered in the affirmative. Mr. Belton asked if any other screening was considered or asking the developer to install a buffer. Ms. Rudy answered in the affirmative and stated that the developer originally indicated that the trees would remain to provide a buffer, but this was not the case. Mr. Rudy stated that only a 25 foot buffer is required between residential and commercial property.

Mr. Wolff referred to the zoning map and asked the zoning of the surrounding property. Mr. Robertson confirmed the zoning for the Board. Mr. Wolff suggested that the Board has not previously required structures to be torn down. He suggested that the request meets the criteria.

- *Mr. Wolff moved for approval based on the findings that the criteria has been met for this case as this is an extraordinary condition where the property is adjacent to commercial property and does not generally apply to other property; there has been a substantial investment and the applicant is trying to adhere to regulations and requiring to tear down the structure would prohibit the use of the property, and it would not be a detriment to the neighborhood.*

Mr. David Rubin seconded the motion. Motion passed on a 6 to 1 vote with Mr. Wolff, Mr. Rubin, Mr. Cowden, Mr. Belton, Ms. Finch-Stevens, and Mr. Duke in favor; Mr. Wood opposed.

3. **Case V-10-19, 982-992 Theodore Road, TMS # 614-00-00-614, 615, 616, 617, 618, 619 Appeal from the strict application of §156.303 Development Standards Table, lot width, to maintain existing lots. (Address Revised)**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Jason Esposito, applicant, reviewed the request with the Board.

Ms. Kim Kavich, 996 Theodore Rd, stated that she owns three adjacent lots and is in the process of building a home. She expressed concern that this would affect the property values for her property.

Ms. Marlene Green, Theodore Rd, expressed concern with the new construction and how this would affect her property.

Mr. Nathaniel Hutchinson, 1051 Theodore Rd, expressed concern on the type of housing that would be built on these lots and how it would affect his property.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff suggested that the request is not in the purview of the Board and that is approved it would be a defacto rezoning. He asked if the property could be rezoned. Mr. Robertson answered that a rezoning request could be requested. He stated that the issue could be continued so the applicant could request a rezoning. Mr. Wolff asked if there is zoning that would allow the lots to be developed as desired. Mr. Robertson answered in the affirmative.

- *Mr. Wolff moved for a continuance as this should be a rezoning request and not a variance request. Mr. Wood seconded the motion. All in favor.*

4. **Case V-11-19, 825 Armsway St., TMS# 532-03-00-065, Appeal from the strict application of 156.224 C to allow removal of historic 27-inch Pecan tree.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Chris Baum, applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wood moved for approval of the request as all criteria has been met and that the removal of the tree at the end of its life will further encourage growth of protected and valuable trees on the property. Mr. Wood seconded the motion. All in favor.

5. **Case V-12-19, 1400 Carolina Park Blvd., TMS# 598-03-00-349, Appeal from the strict application of 156.150 et al to allow more than one free-standing sign per platted lot.**

This item was withdrawn by staff.

G. Approval of Final Orders

Final orders were signed.

There being no further business, the meeting adjourned at 7:07 pm.

Submitted by,
L. Lynes
BOZA03252019